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2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR
HOUSE BILL NO. 4268

By: Johns and **Waldron** of the

By: Johns and **Waldron** of the
House

and

Pugh of the Senate

COMMITTEE SUBSTITUTE

education - Teacher Effectiveness and Excellence

Act - terms - growth-based Teacher Compensation

Program - State Board of Education - pilot program

- eligibility - criteria - compensation - rules -

National Board Certification Bonus Program - bonus

- Office of Educational Quality and Accountability

- report - codification - effective date -

emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

1 This act shall be known and may be cited as the "Teacher
2 Effectiveness and Excellence Act".

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 6-213 of Title 70, unless there
5 is created a duplication in numbering, reads as follows:

6 A. As used in this section:

7 1. "Eligible teacher" means a full-time certified teacher in
8 grades fourth through eighth teaching English language arts and
9 mathematics;

10 2. "Participating school" means a public or charter elementary
11 or middle school serving students in grades fourth through eighth;

12 3. "Recognized teacher" means an eligible teacher whose
13 students demonstrate student growth at or above an established
14 growth threshold; and

15 4. "Student academic growth" means annual student progress as
16 measured by the Oklahoma State Testing Program.

17 B. There is hereby established the Growth-based Teacher
18 Compensation Program to be administered by the State Board of
19 Education. Beginning with the 2026-2027 school year, the pilot
20 program shall operate for a minimum of three (3) consecutive school
21 years.

22 C. To be eligible to participate in the program, teachers shall
23 be a full-time certified teacher in grades fourth through eighth
24 teaching English language arts and mathematics at a participating

1 school. The pilot program shall consist of one thousand five
2 hundred (1,500) teachers representing approximately fifteen percent
3 (15%) of the highest performing teachers serving grades fourth
4 through eighth in eligible schools in Oklahoma. The State Board of
5 Education shall establish criteria for the selection of recognized
6 teachers to participate in the pilot program.

7 D. Recognized teachers participating in the pilot program shall
8 receive annual performance-based compensation under the program as
9 follows:

10 1. Compensation shall be based solely on measurable student
11 academic growth. Such growth shall be calculated using a value-
12 added model based on a rolling two-year period of statewide
13 assessment data; provided, however, during the first year of program
14 implementation, compensation shall be calculated using the previous
15 and current year of academic growth data;

16 2. The State Department of Education shall place participating
17 recognized teachers into three performance tiers based on their
18 statewide student growth percentiles as determined by student growth
19 on Oklahoma State Testing Program assessment data;

20 3. The percentile distribution shall be adjusted as necessary
21 to ensure that total annual expenditures do not exceed available
22 funding for the program;

23 4. Participating recognized teachers shall be identified using
24 equivalent performance tiers which may include Tier 1 (95th

percentile and above), Tier 2 (90th through 94th percentiles), and Tier 3 (85th through 89th percentiles); and

5. Awards shall be paid from the Teacher Empowerment Revolving Fund, created in Section 6-190.2 of Title 70 of the Oklahoma Statutes by the State Department of Education as supplemental compensation. The performance-based compensation shall not be included in the calculation of the teacher's salary for purposes of meeting the district or statutory minimum salary schedule or for purposes of compensating Oklahoma Teachers' Retirement System contributions or benefits. No participating school shall be liable for payment of the performance-based compensation pursuant to this section.

E. The State Board of Education shall promulgate rules to implement the Growth-based Teacher Compensation Program in accordance with this section.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6-214 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Eligible teacher" means any certified teacher in any subject area or grade level who is employed by a public school district in this state; and

2. "National Board Certification" means certification granted by the National Board for Professional Teaching Standards to a

1 teacher who has successfully completed all requirements for initial
2 certification or renewal, as applicable.

3 B. There is hereby established a National Board Certification
4 Bonus Program for eligible teachers who hold or attain National
5 Board Certification.

6 C. An eligible teacher who attains, or has attained and
7 continues to hold, National Board Certification on or after the
8 effective date of this act shall receive an annual bonus of Five
9 Thousand Dollars (\$5,000.00) from the State Board of Education for a
10 five-year period subject to his or her continued employment with a
11 public school district in this state and maintenance of National
12 Board Certification.

13 D. To begin receiving bonus payments, an eligible teacher shall
14 submit proof of his or her National Board Certification to the State
15 Department of Education to receive his or her first annual bonus
16 payment which shall be paid no later than January 31 each year.
17 Bonuses shall be paid from the Teacher Empowerment Fund, created in
18 Section 6-190.2 of Title 70 of the Oklahoma Statutes by the State
19 Department of Education as supplemental compensation. The bonus
20 shall not be included in the calculation of the teacher's salary for
21 purposes of meeting the district or statutory minimum salary
22 schedule or for purposes of compensating Oklahoma Teachers'
23 Retirement System contributions or benefits. No school district
24 shall be liable for payment of bonuses pursuant to this section.

1 E. The State Board of Education shall promulgate rules to
2 implement the National Board Certification Bonus Program in
3 accordance with this section.

4 SECTION 4. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 6-215 of Title 70, unless there
6 is created a duplication in numbering, reads as follows:

7 A. 1. The Office of Educational Quality and Accountability
8 shall contract with an independent evaluator to conduct a rigorous
9 evaluation and report of both:

10 a. Growth-based Teacher Compensation Program

11 implementation fidelity, and

12 b. Growth-based Teacher Compensation Program and the
13 National Board Certification bonus effects on student
14 achievement and teacher workforce outcomes.

15 2. The evaluation created by an independent evaluator shall
16 include:

17 a. comparison groups,

18 b. longitudinal student growth analysis,

19 c. workforce outcomes, including retention and
20 recruitment, and

21 d. the number of teachers who have received a bonus for
22 obtaining National Board Certification as provided for
23 in Section 3 of this act.

1 B. 1. Beginning January 1, 2028, the State Department of
2 Education shall submit the results of the evaluation and report to:

3 a. the Governor,

4 b. the President Pro Tempore of the Oklahoma State
5 Senate, and

6 c. the Speaker of the Oklahoma House of Representatives.

7 2. The evaluation shall include:

8 a. number of participating teachers and schools,

9 b. growth distribution results,

10 c. compensation payments,

11 d. early-grade bonus distributions, and

12 e. findings from the independent evaluation.

13 SECTION 5. This act shall become effective July 1, 2026.

14 SECTION 6. It being immediately necessary for the preservation
15 of the public peace, health or safety, an emergency is hereby
16 declared to exist, by reason whereof this act shall take effect and
17 be in full force from and after its passage and approval.

18
19 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
20 03/05/2026 - DO PASS, As Amended and Coauthored.
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